

NOV 3 1998



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9603
(THIRD REVISION)

EXPIRATION DATE: August 31, 2000

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: Eastman Chemical Company
Kingsport, Tennessee
2. PURPOSE AND LIMITATION: This exemption authorizes the use of a DOT Specification 111A100W1 tank car, except that the tank has a thinner shell thickness in certain areas and deviations in length of fillet welds used in attaching bar pads. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 171.2, 173.240-243 and 179.201-1.
5. BASIS: This exemption is based on the application of Eastman Chemical Company dated July 31, 1998, submitted in accordance with 49 CFR 107.109 and a supplemental letter dated August 24, 1998.

NOV 3 1998

Continuation DOT-E 9603 (3rd rev.)

Page 2

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
5-Methylhexan-2-one	3	UN2302	III
Butanols	3	UN1120	III
Butyl Acetates	3	UN1123	III
Combustible liquid, n.o.s.	Combusti- ble liquid	NA1992	III
Denatured alcohol	3	UN1987	II
Elevated temperature liquid, flammable, n.o.s.	3	UN3256	III
Environmentally hazardous substance, liquid, n.o.s.	9	UN3082	III
Esters, n.o.s.	combus- tible liquid	UN3272	III
Ethyl acetate	3	UN1173	II
Flammable liquid, n.o.s.	3	UN1993	II
Isobutanol	3	UN1212	III
Isobutyl acetate	3	UN1213	II
Isobutyl isobutyrate	3	UN2528	III
Isopropanol	3	UN1219	II
Isopropyl acetate	3	UN1220	II
Methanol	3	UN1230	II
Methyl isobutyl ketone	3	UN1245	II
Methyl propyl ketone	3	UN1249	II

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
n-Amyl methyl ketone	3	UN1110	III
N-Propanol	3	UN1274	III
N-Propyl Acetate	3	UN1276	II

7. SAFETY CONTROL MEASURES: Packaging prescribed is a DOT Specification 111A100W1 tank car, except that the tank has a thinner shell thickness in gouged areas on the underside of the tank where brake airline brackets were formerly attached and for deviations in the length of the fillet welds on the reinforcement bar pads between the tank and the stiffening bars. Before each tank car is offered for transportation, the external surface of each tank car tank shall be inspected at and in the vicinity of the reinforcing bars and bottom skid protection. A tank car that shows evidence of either product leakage or tank cracking shall not be offered for transportation. Reporting marks for the 61 tank cars covered by this exemption are on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA).

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.
- b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.
- c. The tank car must be plainly marked "DOT-E 9603" on both sides near the DOT specification markings, in letters and numerals at least four inches high on a contrasting background.

d. At the time of tank qualification, the owner shall repair the gouged areas in accordance with the requirements of 49 CFR Subpart F of Part 180.

e. The holder of this exemption, as identified above, shall contact the Director of OHMEA immediately if the tank car covered by this exemption is sold, leased or transferred to another party.

f. The Associate Administrator for Safety, Federal Railroad Administration, shall be advised of any action undertaken to modify any tank car covered by this exemption.

9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.

10. MODAL REQUIREMENTS: None as a requirement of this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

- o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable.

(49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

NOV 3 1998

(DATE)

Address all inquiries to: Associate Administrator for
Hazardous Materials Safety, Research and Special Programs
Administration, Department of Transportation, Washington, D.C.
20590.
Attention: DHM-31.

The original of this exemption is on file at the above office.
Photo reproductions and legible reductions of this exemption
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Copies of exemptions may be obtained from the AAHMS, U.S.
Department of Transportation, 400 7th Street, Washington, DC
20590-0001, Attention: Records Center, 202-366-5046.

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